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Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013

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Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013

Act No. 14 of 2013 Enactment date: 22 April 2013

Section-1. Short Title, commencement and application

- 1) This Act may be called the **Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013**.
- 2) It extends to the **whole of India**.
- 3) It shall come into force from **09 Dec. 2013**.

Section-2. Definitions

In this Act, unless the context otherwise requires, —

- (a) **Aggrieved woman**: A woman **without age limit**, any place (working place, office, house, etc.), whether employed or not, who alleges to have been subjected to any act of sexual harassment by the respondent.
- (b) **Appropriate Government**: means **Central Government** or **State Government** or **union territory**, as the case may be.
- (c) **Chairperson**: means the Chairperson of the **Local Complaints Committee** nominated under sub-section (1) of section 7.
- (d) **District Officer**: means an officer notified under section 5.
- (e) **Domestic worker**: means a woman who is employed to do the household work in any household for remuneration whether in **cash or kind**, either directly or through any agency on a **temporary, permanent, part time or full-time basis**, but does not include any member of the family of the employer.
- (f) **Employee**: means a person employed at a workplace for any work on **regular, temporary, ad hoc or daily wage basis**, either directly or through an agent, including a contractor, with or without the knowledge of the principal employer.

(g) **Employer:** means, in relation to any department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit of the appropriate Government or a local authority and any workplace not covered by authority, any person responsible for the management, supervision and control of the workplace. This includes the nature of employment or activities performed by the domestic worker at house or dwelling.

(h) **Internal Committee:** means an **Internal Complaints Committee** constituted under section 4.

(i) **Local Committee:** means the **Local Complaints Committee** constituted under section 6.

(j) **Member:** means a Member of the Internal Committee or the Local Committee, as the case may be.

(k) **Prescribed:** means prescribed by rules made under this Act.

(l) **Presiding Officer:** means the Presiding Officer of the **Internal Complaints Committee** nominated under sub-section (2) of section 4.

(m) **Respondent:** means a person against whom the aggrieved woman has made a complaint under section 9.

(n) **Sexual harassment:** includes any one or more of the following unwelcome acts or behavior (whether directly or by implication) namely:

- (i) physical contact and advances; or
- (ii) a demand or request for sexual favours; or
- (iii) making sexually coloured remarks; or
- (iv) showing pornography; or
- (v) any other unwelcome physical, verbal or non-verbal conduct of sexual nature.

(o) **Workplace:** includes—

- (1) any department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit which is established, owned, controlled or wholly or **substantially financed** by funds provided by Govt.
- (2) any private sector organisation or a private venture, undertaking, enterprise, institution, establishment, society, trust, non-governmental organisation.
- (3) hospitals or nursing homes.
- (4) any sports institute, stadium, sports complex or competition or games venue.
- (5) any place visited by the employee arising out of or during the course of employment including transportation by the employer for undertaking such journey.
- (6) a dwelling place or a house.

(p) **Un-organized sector:** a workplace means an enterprise owned by individuals or self-employed workers where the number of such workers is **less than ten**.

Section-3. Prevention of sexual harassment

1) No woman shall be subjected to sexual harassment at any workplace. 2) The following circumstances, if it occurs, or is present in relation to or connected with any act or behavior of sexual harassment may amount to sexual harassment:

- (i) implied or explicit promise of preferential treatment in her employment;
- (ii) implied or explicit threat of detrimental treatment in her employment;
- (iii) implied or explicit threat about her present or future employment status;
- (iv) interference with her work or creating an intimidating or offensive or hostile work environment for her;
- (v) humiliating treatment likely to affect her health or safety.

Section-4. Constitution of Internal Complaints Committee

1. Every employer of a workplace shall, by an order in writing, constitute a Committee to be known as the "**Internal Complaints Committee**".

Provided that where the offices or administrative units of the workplace are located at different places or divisional or sub-divisional level, the Internal Committee shall be constituted at all administrative units or offices.

2. The Internal Committee shall consist of the following members to be nominated by the employer, namely: —
 - (a) **Presiding Officer**: who shall be a woman employed at a **senior level** at workplace from amongst the employees. Provided that in case a senior level woman employee is not available, the Presiding Officer shall be nominated from other offices or administrative units of the workplace.
 - (b) **Not less than two Members**: from amongst employees preferably committed to the cause of women or who have had experience in social work or have legal knowledge.
 - (c) **One member**: from amongst non-governmental organisations or associations committed to the cause of women or a person familiar with the issues relating to sexual harassment.
3. At least **one-half of the total Members** so nominated shall be women.
4. The Presiding Officer and every Member of the Internal Committee shall hold office for such period, **not exceeding three years**, from the date of their nomination as may be specified by the employer.
5. The Member appointed from amongst the non-governmental organisations or associations shall be paid such fees or allowances as may be prescribed.

Section-5. Notification of District Officer

The appropriate Government may notify a District Magistrate or Additional District Magistrate or the Collector or Deputy Collector as a **District Officer** for every District to exercise powers or discharge functions under this Act.

Section-6. Constitution of Local Complaints Committee

1. Every District Officer shall constitute in the district concerned, a committee to be known as the "**Local Complaints Committee**" to receive complaints of sexual harassment from establishments where the Internal Complaints Committee has not been constituted due to having **less than ten workers** or if the complaint is against the employer himself.
2. The District Officer shall designate one nodal officer in every block, taluka and tehsil in rural or tribal area and ward or municipality in the urban area, to receive complaints and forward the same to the concerned Local Complaints Committee within a period of **seven days**.
3. The jurisdiction of the Local Complaints Committee shall extend to the areas of the district where it is constituted.

Section-7. Composition, tenure and other terms and conditions of Local Complaints Committee

1. The Local Complaints Committee shall consist of the following members to be nominated by the District Officer, namely: —
 - (a) a **Chairperson** to be nominated from amongst the eminent women in the field of social work and committed to the cause of women;
 - (b) **one Member** to be nominated from amongst the women working in block, taluka or tehsil or ward or municipality in the district;
 - (c) **two Members**, of whom at least one shall be a woman, to be nominated from amongst such non-governmental organisations or associations committed to the

cause of women or a person familiar with the issues relating to sexual harassment, which may be prescribed. Provided that at least one of the nominees should, preferably, have a background in law or legal knowledge. Provided further that at least one of the nominees shall be a woman belonging to the **Scheduled Castes or the Scheduled Tribes or the Other Backward Classes** or minority community notified by the Central Government, from time to time;

- (d) the relevant officer of the District amongst the officers holding charge of the social welfare or women and child development in the district, shall be a member **ex officio**.
2. The Chairperson and every Member of the Local Committee shall hold office for such period, **not exceeding three years**, from the date of their appointment as may be specified by the District Officer.

Section-8. Grants and audit

1. The Central Government may, after due appropriation made by Parliament by law in this behalf, make to the State Government grants of such sums of money as the Central Government may think fit, for being utilised for the payment of fees or allowances referred to in sub-section (4) of section 7.
2. The State Government may set up a fund and transfer therein the sums as it may think fit and there shall be paid out of such fund the sums to be paid to the District Officer.
3. The District Officer shall maintain separate accounts of the money given to him by the State Government and cause an audit thereof to be laid before the State Government.

Section-9. Complaint of sexual harassment

- 1) Any aggrieved woman may make, in writing, a complaint of sexual harassment at workplace to the Internal Committee if so constituted, or the Local Committee, in case it is not so constituted, within a period of **three months** from the date of incident and in case of a series of incidents, within a period of **three months** from the date of last incident.
- 2) Where the aggrieved woman is unable to make a complaint on account of her physical

or mental incapacity or death or otherwise, her legal heir or such other person as may be prescribed may make a complaint under this section.

Note: 1) All reasonable assistance shall be provided to the woman for making the complaint in writing by the presiding officer.

2) Complaint shall be submitted within **three months**, but ICC/Local committee may extend this if satisfied that circumstances prevented the woman from filing within the said period.

Section-10. Conciliation

1) The Internal Committee or the Local Committee may, before initiating an inquiry and at the request of the aggrieved woman, take steps to settle the matter through conciliation. **No monetary settlement** shall be made as a basis of conciliation.

2) Where settlement has been arrived, the Committee shall record it and forward it to the employer or District Officer for action.

3) The Committee shall provide copies of the recorded settlement to the aggrieved woman and the respondent. 4) Where a settlement is arrived, no further inquiry shall be conducted.

Section-11. Inquiry into complaint

1) Where the respondent is an employee, the Committee shall proceed to make inquiry in accordance with applicable service rules.

2) Where no such rules exist or in case of a domestic worker, the LCC shall, if a prima facie case exists, forward the complaint to the police within **seven days** for registration under **Section 509 of the Indian Penal Code**.

3) During the inquiry, both parties shall be given an opportunity of being heard and provided a copy of the findings to make representations.

4) For the purpose of inquiry, the Committee shall have the same powers as vested in a civil court under the **Code of Civil Procedure, 1908**.

5) The inquiry shall be completed within a period of **ninety days (90 days)**.

CHAPTER V: Inquiry into Complaint

Section-12. Action during pendency of inquiry

1. During the pendency of an inquiry, on a written request by the aggrieved woman, the Committee may recommend to the employer to:
 - (a) transfer the aggrieved woman or the respondent to any other workplace;
 - (b) grant leave to the aggrieved woman up to a period of **three months**;
 - (c) grant such other relief as may be prescribed. 2) The leave granted under this section shall be in addition to the leave she would otherwise be entitled to. 3) The employer shall implement these recommendations and send a report of implementation.

Section-13. Inquiry report

- 1) On completion of an inquiry, the ICC or LCC shall provide a report of its findings to the employer or District Officer within **10 days** of completion.
- 2) If allegations are not proved, it shall recommend that no action is required.
- 3) If allegations are proved, it shall recommend: * (a) Action against the respondent as per service conduct rules. * (b) Deduction of compensation from the salary of the respondent to be paid to the aggrieved woman or legal heirs.
- 4) The employer or District Officer shall act upon the recommendation within **sixty days** of receipt.

Section-14. Punishment for false or malicious complaint and false evidence

1. Where the Internal Committee or the Local Committee, as the case may be, arrives at a conclusion that the allegation against the respondent is malicious or the aggrieved woman or any other person making the complaint has made the complaint knowing it to be false or the aggrieved woman or any other person

making the complaint has produced any forged or misleading document, it may recommend to the employer or the District Officer, as the case may be, to take action against the woman or the person who has made the complaint in accordance with the provisions of the service rules applicable to her or him.

2. Provided that a mere inability to substantiate a complaint or provide adequate proof need not attract action against the complainant.
3. The malicious intent on part of the complainant shall be established after an inquiry in accordance with the procedure prescribed, before any action is recommended.

Section-15. Determination of compensation

For the purpose of determining the sums to be paid to the aggrieved woman under section 13, the Internal Committee or the Local Committee, as the case may be, shall have regard to—

- (a) the mental trauma, pain, suffering and emotional distress caused to the aggrieved woman;
- (b) the loss in the career opportunity due to the incident of sexual harassment;
- (c) medical expenses incurred by the victim for physical or psychiatric treatment;
- (d) the income and financial status of the respondent;
- (e) feasibility of such payment in lump sum or in instalments.

Section-16. Prohibition of publication or making known contents of complaint and inquiry proceedings

Notwithstanding anything contained in the **Right to Information Act, 2005**, the contents of the complaint, the identity and addresses of the aggrieved woman, respondent and witnesses, any information relating to conciliation and inquiry proceedings, recommendations of the Internal Committee or the Local Committee, as the case may be,

and the action taken by the employer or the District Officer shall not be published, communicated or made known to the public, press and media in any manner.

Section-17. Penalty for publication or making known contents of complaint and inquiry proceedings

Where any person entrusted with the duty to handle or deal with the complaint, inquiry or any recommendations or action to be taken under the provisions of this Act, contravenes the provisions of section 16, he shall be liable for penalty in accordance with the provisions of the service rules applicable to the said person or where no such service rules exist, in such manner as may be prescribed.

Section-18. Appeal

1. Any person aggrieved from the recommendations made under section 13 or section 14 or section 17 or non-implementation of such recommendations may prefer an appeal to the court or tribunal in accordance with the provisions of the service rules applicable to the said person.
2. Where no such service rules exist, the person aggrieved may prefer an appeal in such manner as may be prescribed.
3. The appeal shall be preferred within a period of **ninety days** of the recommendations.

CHAPTER VI: Duties of Employer

Section-19. Duties of employer

Every employer shall—

- (a) provide a safe working environment at the workplace which shall include safety from the persons coming to the workplace;

- (b) display at any conspicuous place in the workplace, the penal consequences of sexual harassments; and the order constituting, the Internal Committee;
- (c) organise workshops and awareness programmes at regular intervals for sensitising the employees with the provisions of the Act and orientation programmes for the members of the Internal Committee;
- (d) provide necessary facilities to the Internal Committee or the Local Committee, as the case may be, for dealing with the complaint and conducting an inquiry;
- (e) assist in securing the attendance of respondent and witnesses before the Internal Committee or the Local Committee;
- (f) make available such information to the Internal Committee or the Local Committee, as the case may be, as it may require;
- (g) provide assistance to the woman if she so chooses to file a complaint in relation to the offence under the **Bharatiya Nyaya Sanhita, 2023**;

 **LEGISLATIVE NOTE:** Reference to "Indian Penal Code" (IPC) has been updated to **Bharatiya Nyaya Sanhita, 2023 (BNS)** following the repeal of the IPC effective **1st July 2024**. (Updated 2025).

- (h) cause to initiate action, under the **Bharatiya Nyaya Sanhita, 2023** or any other law for the time being in force, against the perpetrator, or if the aggrieved woman so desires, where the perpetrator is not an employee, in the workplace at which the incident of sexual harassment took place;
- (i) treat sexual harassment as a misconduct under the service rules and initiate action for such misconduct;
- (j) monitor the timely submission of reports by the Internal Committee.

CHAPTER VII: Duties and Powers of District Officer

Section-20. Duties and powers of District Officer

The District Officer shall, —

- (a) monitor the timely submission of reports furnished by the Local Committee;

- (b) take such measures as may be necessary for creating awareness of the provisions of this Act and the rights of the women.

CHAPTER VIII: Miscellaneous

Section-21. Committee to submit annual report

1. The Internal Committee or the Local Committee, as the case may be, shall in each calendar year prepare, in such form and at such time as may be prescribed, an annual report and submit the same to the employer and the District Officer.
2. The District Officer shall forward a brief report on the annual reports received under sub-section (1) to the State Government.

Section-22. Employer to include information in annual report

The employer shall include in his report the number of cases filed, if any, and their disposal under this Act in the annual report of his organisation or where no such report is required to be prepared, intimate such number of cases, if any, to the District Officer.

Section-23. Appropriate Government to monitor implementation and maintain data

The appropriate Government shall monitor the implementation of this Act and maintain data on the number of cases filed and disposed of in respect of all cases settled under this Act.

Section-24. Appropriate Government to take measures to publicise the Act

The appropriate Government may, subject to the availability of financial and other resources, —

- (a) develop relevant information, education, communication and training materials, and organise awareness programmes, to advance the understanding of

the public of the provisions of this Act providing for protection against sexual harassment of woman at workplace;

- (b) formulate orientation and training programmes for the members of the Local Complaints Committee.

Section-25. Power to call for information and inspection of records

1. The appropriate Government, on being satisfied that it is necessary in the public interest or in the interest of women employees at a workplace to do so, may, by order in writing, —
 - (a) call upon any employer or District Officer to furnish in writing such information relating to sexual harassment as it may require;
 - (b) authorise any officer to make inspection of the records and workplace in relation to sexual harassment, who shall submit a report of such inspection to it within such period as may be specified in the order.
2. Every employer and District Officer shall produce before the officer making the inspection all information, closure, and documents in his custody or power which relate to sexual harassment.

Section-26. Penalty for non-compliance with provisions of Act

1. Where the employer fails to —
 - (a) constitute an Internal Committee under sub-section (1) of section 4;
 - (b) take action under sections 13, 14 and 22; and
 - (c) contravenes or attempts to contravene or abets contravention of other provisions of this Act or any rules made thereunder,

he shall be punishable with fine which may extend to **Rs. 50,000**.

2. If any employer, after having been previously convicted of an offence punishable under this Act subsequently commits and is convicted of the same offence, he shall be liable to —
 - (i) twice the punishment, which might have been imposed on a first conviction, subject to the punishment being maximum provided for the same offence;
 - (ii) cancellation, of his licence or withdrawal, or non-renewal, or approval, or cancellation of the registration, as the case may be, by the Government or local authority required for carrying on his business or activity.

Section-27. Cognizance of offence by courts

1. No court shall take cognizance of any offence punishable under this Act or any rules made thereunder, save on a complaint made by the aggrieved woman or any person authorised by the Internal Committee or the Local Committee in this behalf.
2. No court inferior to that of a **Metropolitan Magistrate** or a **Judicial Magistrate of the first class** shall try any offence punishable under this Act.
3. Every offence under this Act shall be **non-cognizable**.

Section-28. Act not in derogation of any other law

The provisions of this Act shall be in addition to and not in derogation of the provisions of any other law for the time being in force.

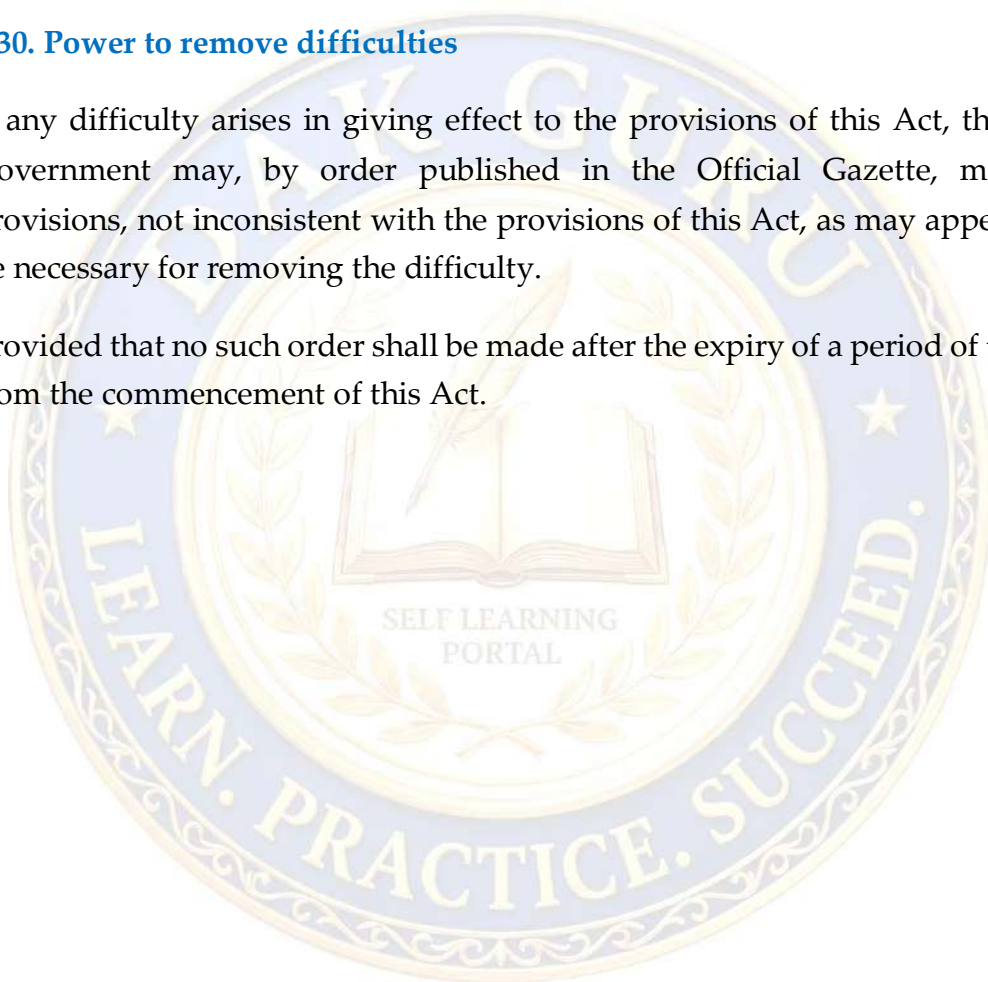
Section-29. Power of appropriate Government to make rules

1. The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.
2. In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely: —

- (a) the fees or allowances to be paid to the Members under sub-section (5) of section 4;
- (b) nomination of members under clause (c) of sub-section (1) of section 7;
- (c) the fees or allowances to be paid to the Chairperson and Members under sub-section (4) of section 7.

Section-30. Power to remove difficulties

1. If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as may appear to it to be necessary for removing the difficulty.
2. Provided that no such order shall be made after the expiry of a period of **two years** from the commencement of this Act.



Fee and Allowances

Internal Committee (ICC)

The member appointed from a non-government organization shall be paid **Rs. 200 per day** and travel with **3rd class air conditioner** or **air-conditioned bus** and **auto taxi** or the actual amount spent by him, whichever is less.

Local Committee (LCC)

- **Chairperson: Rs. 250/- per day**
- **Members: Rs. 200/- per day**
- **Travel: 3rd class AC or AC bus and auto taxi** or actual amount spent, whichever is less.

Sexual Complaint Submission and Deciding Procedure

1. The complainant should submit the complaint to the ICC or LCC in **six copies** along with supporting documents and names and addresses of witnesses.
2. On the receipt of the complaint, the complaints committee shall send **one copy** to the respondent within the period of **seven working days**.
3. The respondent shall file their reply to the complaint along with his list of documents and names and addresses of witnesses within a period not exceeding **10 days** from the date of receipt of the complaint copy from the committee.
4. If the complainant or respondent fails, without sufficient cause, to attend **three consecutive hearings** convened by the Chairperson or Presiding Officer, the Chairperson or Presiding Officer shall have the right to take an **ex-parte decision** on the complaint.
5. The ex-parte order may not be passed without giving a notice in writing, **15 days** advance, to the party concerned.

Determination of Compensation: Detailed Factors

In reference to **Section 15**, the following specific components are evaluated to determine the compensation amount:

- (a) Mental trauma, pain, suffering, and emotional distress caused to the aggrieved woman.
- (b) The loss in the career opportunity due to the incident of sexual harassment.
- (c) Medical expenses incurred by the victim for physical or psychiatric treatment.
- (d) The income and financial status of the respondent.
- (e) The feasibility of such payment in a lump sum or in installments.

Action for Non-Compliance (Summary of Penalties)

1. **Failure to Constitute Committee:** If an employer fails to constitute an Internal Committee, they shall be punishable with a fine of **Rs. 50,000**.
2. **Repeated Offence:** If an employer is convicted of the same offence a second time, they shall be liable to **twice the punishment** (double the fine).
3. **Administrative Action:** For repeated offences, the appropriate Government or local authority may:
 - Cancel the business license.
 - Withdraw or non-renew the approval or registration required for carrying out the business or activity.

Legal Status and Cognizance

- **Court Jurisdiction:** No court inferior to that of a **Metropolitan Magistrate** or a **Judicial Magistrate of the first class** shall try any offence under this Act.
- **Cognizance:** The court will only take action based on a complaint filed by the aggrieved woman or a person authorized by the Internal/Local Committee.

- **Nature of Offence:** Every offence under this Act is **non-cognizable**, meaning an arrest cannot be made without a warrant.

Final Provisions

- **Bar of Jurisdiction:** Civil courts do not have jurisdiction in respect of any matter which the Internal Committee or the Local Committee is empowered to determine.
- **Protection of Action Taken in Good Faith:** No suit, prosecution, or other legal proceedings shall lie against the Central Government, State Government, District Officer, or any member of the Committee for anything done in good faith under this Act.
- **Power of Central Government to make Rules:** The Central Government holds the power to make rules regarding the implementation of this Act, which must be laid before each House of Parliament for a total period of **30 days**.

SUMMARY OF STATUTORY TIMELINES

The following consolidated timeline serves as the final operational reference for the Act:

- **Filing of Complaint:** Within **3 months** of the incident (Section 9).
- **Notice to Respondent:** Within **7 working days** of receiving the complaint.
- **Respondent's Reply:** Within **10 working days** from the receipt of the complaint copy.
- **Completion of Inquiry:** Within **90 days** (Section 11).
- **Submission of Inquiry Report:** Within **10 days** of completion of the inquiry (Section 13).
- **Implementation of Recommendation:** Within **60 days** by the employer (Section 13).
- **Filing of Appeal:** Within **90 days** of the recommendations (Section 18).

Final Compliance Notes

1. Alignment with Bharatiya Nyaya Sanhita, 2023:

All references to criminal prosecution for sexual harassment must now be routed through the relevant provisions of the **BNS, 2023** (formerly Section 354A, 509 IPC).

 **LEGISLATIVE NOTE:** Any reference to "Indian Penal Code" in workplace policy documents should be substituted with "**Bharatiya Nyaya Sanhita, 2023**" to remain legally current as of **1st July 2024**. (Updated 2025).

2. Monetary Limits:

The penalty for non-constitution of the Internal Committee remains capped at **Rs. 50,000** for the first instance, with the provision for **double penalty** and **cancellation of business licenses** for subsequent contraventions (Section 26).

3. Anonymity Mandate:

Strict adherence to **Section 16** is required. Even under the **RTI Act, 2005**, the identity of the aggrieved woman and the witnesses cannot be disclosed.